

COLLECTION · QUÉBEC & LEGAL

Divided vs. Undivided Co-Ownership

*Two very different ways to own a condo —
choose the right one*

READ BEFORE YOU BEGIN

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Edition

Divided vs. Undivided Co-Ownership

Two very different ways to own a condo — choose the right one

In Quebec, “co-ownership” covers two quite distinct realities: divided co-ownership (the classic condo) and undivided co-ownership. They look alike on the surface but differ deeply on the legal, financial and practical level.

This guide compares the two to help you choose with full knowledge — because the difference has real consequences.

Informational content. Each chapter ends with a lined “My notes” page.

In Quebec, “co-ownership” covers two distinct realities: divided (the classic condo) and undivided. They look alike but differ deeply — legally, financially, at resale. This guide compares them for an informed choice.

The difference has real consequences: this guide gives you the grid to choose.

CHAPTER

Divided co-ownership (the classic condo)

Understanding the most common model.

In divided co-ownership, each unit has its **own distinct title of ownership** and its lot number.

- A **syndicate** of co-owners manages the building.
- A **declaration of co-ownership** governs the rights and obligations.
- Co-ownership **fees** and a **contingency fund** finance the maintenance.

You finance your unit with your own mortgage: simpler to finance and to resell.

In divided co-ownership (the classic condo), each unit has its own distinct title and its lot number, with a syndicate, a declaration and a contingency fund. You finance it with your own mortgage: it's simpler to finance and to resell.

EMILIE'S TIP

In divided, read the declaration of co-ownership AND the latest meeting minutes.

They reveal upcoming work, conflicts and the real health of the contingency fund.

CHAPTER

Undivided co-ownership

Understanding this particular model.

In undivided co-ownership, several people together own **ONE single building**, without division into distinct lots.

Each holds a **share** of the whole and enjoys a portion under an **undivided co-ownership agreement**. There are no separate titles per unit.

- Often a lower entry price for a given area.
- More complex financing: sometimes a shared mortgage.
- Strong interdependence between co-owners.

In undivided co-ownership, several people together own ONE single building, without distinct lots: each holds a share under an undivided co-ownership agreement. A sometimes lower entry price, but more complex financing (sometimes a shared mortgage) and strong interdependence between co-owners.

EMILIE'S TIP

In undivided, you're tied to the other co-owners, sometimes by a shared mortgage. Make sure you know them well and understand the agreement before committing.

CHAPTER

Divided or undivided: choosing well

Weighing the advantages and the risks.

The two models look alike on the surface, but differ deeply:

- **Divided:** simpler, more liquid, better governed — often the default choice.
- **Undivided:** sometimes more affordable, but more complex to finance and resell, very dependent on the agreement and the other co-owners.

In both cases: check documents, finances and rules before buying. The right choice depends on your budget and your tolerance for complexity.

At a comparable price, divided offers more peace of mind and resells more easily; undivided can be interesting but enter it with your eyes open, not just to save money. In both cases, check documents, finances and rules before buying.

EMILIE'S TIP

At a comparable price, divided offers more peace of mind and resells more easily. Undivided can be interesting, but enter it with your eyes open, not just to save money.

CHAPTER

The contingency fund and the fees

Assessing the co-ownership's financial health.

A co-ownership is also a small collective enterprise. Its financial health concerns you directly:

- **Monthly fees:** cover routine maintenance and services.
- **Contingency fund:** a reserve for major repairs (roof, façade, elevator).
- **Contingency fund study:** assesses whether the reserve is sufficient.

An under-funded fund heralds future **special assessments**: it's a signal not to ignore.

The financial health concerns you directly: monthly fees, contingency fund (a reserve for roof, façade, elevator), the fund study. Abnormally low fees aren't a bargain: they often hide an insufficient fund, and therefore special assessments to come.

EMILIE'S TIP

Abnormally low fees aren't a bargain: they often hide an insufficient contingency fund. You'll pay sooner or later, in the form of a special assessment.

CHAPTER

The checks before buying

Reducing the nasty surprises.

Before signing, whatever the model, do your document review:

1. Read the **declaration** (divided) or the **agreement** (undivided).
2. Consult the **meeting minutes** and the **budget**.
3. Check the state of the **contingency fund** and the planned work.
4. Confirm the **bylaws** (pets, renting, renovations).

Have these documents examined by your notary: it's the best bulwark against costly surprises.

Before signing, do your document review: read the declaration (divided) or the agreement (undivided), the meeting minutes, the budget, the state of the fund and the bylaws (pets, renting, renovations). Have these documents examined by your notary — it's the best bulwark against surprises.

EMILIE'S TIP

Always buy a condo “documents in hand”. A poorly read declaration can hide a ban on renting, imminent work or an ongoing dispute. The notary is your ally here.

IN PRACTICE

Action plan

Your next steps, concretely.

This week

1. Confirm the type of co-ownership of the target unit.
2. Gather the documents (declaration or agreement).

Within 30 days

1. Have the declaration (divided) or the agreement (undivided) examined.
2. Check the financing implications.

Next

1. Choose with full knowledge, with Emilie and the notary.

Before buying

1. Confirm the type of co-ownership and gather the declaration/agreement, finances and minutes.
2. Have the documents examined by a notary before fulfilling my conditions.

REFERENCES

Resources & glossary

- Divided co-ownership: the classic condo, a distinct title per unit.
 - Undivided co-ownership: a share of a single building, without separate lots.
 - Undivided co-ownership agreement: an agreement setting rights and obligations in undivided.
 - Contingency fund: collective savings (especially in divided).
 - Liquidity: ease of resale, generally better in divided.
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- Divided co-ownership: the classic condo, a distinct title per unit.
 - Undivided co-ownership: a share of a single building, without separate lots.
 - Undivided co-ownership agreement: an agreement setting rights and obligations in undivided.
 - Contingency fund: a collective reserve for major repairs.
 - Special assessment: a one-time contribution when the fund isn't enough.

GOING FURTHER

Quiz — test your knowledge

1. In divided co-ownership, each unit has:

- A) A share
- B) Its own distinct title of ownership
- C) No title
- D) A lease

2. In undivided co-ownership, you hold:

- A) A separate lot
- B) A share of a single building
- C) A lease
- D) Nothing

3. Undivided is governed by:

- A) A declaration of co-ownership
- B) An undivided co-ownership agreement
- C) A lease
- D) No document

4. Divided is generally:

- A) Less liquid
- B) Simpler to finance and resell
- C) Forbidden
- D) Without a syndicate

5. Undivided is often:

- A) Simpler to finance
- B) More affordable but more complex to finance and resell
- C) Without co-owners
- D) Without an agreement

6. The contingency fund serves to:

- A) Pay for groceries
- B) Finance major repairs
- C) Lower the price
- D) Pay the notary

7. Abnormally low fees can hide:

- A) An insufficient contingency fund
- B) A risk-free bargain
- C) A tax cut
- D) Nothing

8. An under-funded fund often heralds:

- A) A drop in fees
- B) Future special assessments
- C) A refund
- D) No effect

9. Before buying, you must read:

- A) Nothing
- B) The declaration/agreement, minutes and budget
- C) The newspaper
- D) The neighbour's lease

10. To examine the documents, the best ally is:

- A) The neighbour
- B) The notary
- C) The insurer
- D) The city

Answer key

- 1. **B** — A distinct title per unit (ch. 1).
- 2. **B** — A share of the whole (ch. 2).
- 3. **B** — An undivided co-ownership agreement (ch. 2).
- 4. **B** — More liquid (ch. 1 and 3).
- 5. **B** — More complex (ch. 3).
- 6. **B** — A reserve for repairs (ch. 4).
- 7. **A** — A sign of an under-funded fund (ch. 4).
- 8. **B** — Special assessments (ch. 4).

9. B — A document review (ch. 5).

10. B — The notary (ch. 5).

Signé PAR Em

*Thank you for reading. May this guide help you
decide with confidence, with all the information
in hand.*

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